



File No.: EXP202203588

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 16/02/2022, a complaint was filed with entry registration number O00007128e2200007116 before the Spanish Agency for Data Protection against JUSTICIAPP, S.L. with NIF B16822066 (hereinafter, the complained party/XXXXX). The reasons for the complaint are as follows:

Complaint against the responsible party of the website ***URL.1, before which the complainant exercised their right of access by sending an email on 9/2/22. A response was received on 15/2/22, informing them "We want to inform you that there is no, nor has there ever been, any personal data of yours (neither your name nor any other) that has been processed, used, or transferred by JusticiApp, S.L."

However, in the access request, the complainant also asked for clarification on which personal data is subject to international transfer (referring to the statement in the privacy policy that "Some of our providers are based outside the European Economic Area, so we may transfer your personal data to third countries"). It also referred to the use of cookies and the possibility that Google analytical cookies may have been installed, despite having rejected them. As the responsible party did not expressly address these aspects in their response, the affected party does not consider themselves satisfied. Upon accessing the site ***URL.1, a registration screen is displayed, allowing access to services via username and password or by using a Google account. If "register" is clicked, the registration form is accessed, from which the documents of terms and conditions and the privacy policy are linked.

Regarding the use of cookies, upon accessing the site, a cookie notice is displayed informing of the use of these devices in the following terms: "We use cookies to ensure that we provide the best user experience on our website." The user is offered the option to accept or reject, and a link to the cookie policy is provided. If the installation is rejected, only the G_ENABLED_IDPS cookie (persistent, with no effective expiration date) is installed, linked to the identification service through a Google account. If the installation is accepted, Google analytical cookies are also included. The cookie policy does not provide information regarding the first cookie mentioned. Regarding the analytics, _ga or _gid are classified as technical. In section 4 of the text, it is expressly stated "JUSTICIAPP, S.L., by automatically obtaining information from the website through Cookies, may collect personal data from Users, related to their computer device, the use of services, and their behavior habits. This information may include, among others, data about language, the most used pages or functionalities of the website, keywords, date, time, duration of time Users spend on certain types of pages, IP address, advertising identifier, and similar information related to the use of the website. JUSTICIAPP, S.L., may collect such information through the use of cookies. In this regard, concerning information that identifies or makes Users identifiable, the provisions of the Privacy Policy shall apply. If Users have questions about how long we retain personal data obtained through Cookies, or wish to exercise the rights of access, rectification, deletion, or opposition recognized in the protection regulations, they can consult the Privacy Policy or contact us at the following address ***EMAIL.1."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

On 04/05/2022, a response to the forwarding of the complaint was received by this Agency.

According to the preliminary information available, there are reasonable indications of a possible violation of the rules within the scope of the competencies of the Spanish Agency for Data Protection, without prejudice to what may be determined during the processing.

THIRD: On May 11, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary

investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI), and as provided in Articles 47 and 48.1 of the Organic Law

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3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II

Preliminary Investigative Actions

Article 67 of the LOPDGDD (as drafted prior to the amendment introduced by the Ninth Final Provision of Law 11/2023, of May 8) determines the following regarding preliminary investigative actions:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure. The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments that involve massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the agreement of admission for processing or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

III

Expiration of Actions

In relation to the preliminary actions, the Development Regulation of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that "The expiration of the term without an agreement to initiate sanctioning proceedings having been issued and notified will result in the expiration of the preliminary actions."

In light of the provisions in the transcribed articles, the preliminary actions must be understood as expired if, more than twelve months have elapsed from the date of admission for processing of the complaint, no agreement to initiate sanctioning proceedings has been issued and notified.

In the present case, the computation of the twelve-month maximum duration of the preliminary actions began on May 11, 2022, and is still pending completion; therefore, they must be declared expired.

IV

Initiation of New Investigative Actions

On the other hand, Article 95.3 of the aforementioned LPACAP states:

“Expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period. In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into it. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed.”

In this regard, the National Court considers (Judgment of July 10, 2013) that “the declaration of expiration of the preliminary investigative actions initiated by the Spanish Agency for Data Protection does not pose any obstacle for that entity to initiate or restart other preliminary investigative actions on the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

In the present actions, the investigation has not yet concluded as new lines of investigation have emerged that, due to their relevance, must be appropriately evaluated and developed in their entirety; therefore, despite the time elapsed, it is essential to fully complete the proposed scope of investigation. Furthermore, this new context of investigation has proven to be a process of enormous complexity, both from a technical standpoint and due to the volume of documentation that must be analyzed and studied, which requires an additional period of time to adequately fulfill the planned process.

Consequently, since the facts under investigation are not prescribed, instructions are given to the General Subdirectorate of Data Inspection to initiate new investigative actions.

Therefore, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative actions.

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SECOND: TO OPEN new investigative proceedings and to incorporate into these new proceedings the documentation that comprises the previous proceedings which are declared expired by this act.

THIRD: TO NOTIFY this Resolution to JUSTICIAPP, S.L. and to the claiming party.

Against this resolution, which concludes the administrative procedure as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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